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MORAL LEGITIMACY IN WAR:

FROM JUSTIFICATION
TO DHĀRMIC ALIGNMENT



Rohit Viswanath

Marga Darshak:

Padma Bhushan Dr. M.B. Athreya

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Comments and feedback are welcome.



Dharmo viśvasya jagataḥ pratiṣṭhā

Dharma is the foundation of the entire universe.

Executive Summary

This paper advances a *dhārmic* theory of moral legitimacy in war, arguing that contemporary frameworks such as Just War Theory and the Responsibility to Protect (R2P), while normatively significant, remain incomplete. These frameworks rely primarily on externally verifiable criteria such as just cause, proportionality, right intention, and last resort, but do not sufficiently account for the moral condition of the agent who undertakes the use of force.

Drawing on the *Mahābhārata*, the paper proposes that moral legitimacy is not fully established by external justification alone. Rather, it arises when action is undertaken by an agent inwardly aligned with *dharma*. This alignment entails freedom from ego, commitment to duty (*svadharma*), and detachment from personal gain (*niṣkāma karma*), enabling the use of force as an instrument of order rather than self-interest.

Through an analysis of Kṛṣṇa's diplomatic efforts, Yudhiṣṭhira's restraint, Arjuna's crisis, and the episode of Rāma and Vāli, the paper demonstrates that ethical action in war is inseparable from the moral formation of the actor. Arjuna's hesitation, often interpreted as moral, is reframed as an emotional-evaluative crisis, where *śoka* constitutes a valid moral response, but one rendered incomplete by partial moral context and attachment. The paper accordingly develops the movement from grief to clarity to *dhārmic* action as a process of sublimation.

The paper develops a three-layered model of legitimacy, comprising external, procedural, and ethical (*dhārmic*) dimensions, and argues that contemporary approaches are largely limited to the first two, leaving them vulnerable to uncertainty regarding intention and outcome. The *dhārmic* perspective

addresses this limitation by grounding legitimacy in the ethical transformation of the agent.

By integrating classical Indian thought with contemporary international ethics, the paper offers a more foundational account of moral legitimacy in war one that also informs a pedagogical approach to *nāṭya*, where *rasa* may be employed as a means of elevating the audience toward alignment.

Contemporary frameworks such as Just War Theory and the Responsibility to Protect (R2P) seek to establish moral legitimacy in warfare through externally verifiable criteria: just cause, proportionality, right intention, and last resort. While these frameworks provide necessary constraints, they remain normatively underdetermined, as they do not systematically foreground the moral condition of the agent who undertakes the use of force. This paper advances a distinct and more foundational account of moral legitimacy drawn from classical Indian thought.

It argues that war becomes truly legitimate not merely when externally justified, but when undertaken by an agent inwardly aligned with *dharma*. *Dhārayati iti dharmaḥ*, that which sustains order is *dharma*. Only one aligned with it can act without collapsing into *adharma*. Through an analysis of Kṛṣṇa's diplomacy, Yudhiṣṭhira's restraint, Arjuna's moral crisis, and the episode of Rāma and Vāli in the *Rāmāyaṇa*, the paper proposes that inner alignment is not supplementary but constitutive of ethical action. Without such alignment, even externally justified war risks degenerating into *adharma* despite formal justification.

1. Law, War, and the Problem of the Moral Agent

Modern discussions of the ethics of war are dominated by frameworks that seek to regulate the use of force through objective criteria. Just War Theory and the Responsibility to Protect (R2P) represent sophisticated attempts to ensure that war, when undertaken, is morally justified. Yet these frameworks remain limited insofar as they do not systematically foreground the ethical constitution of the agent.

Recent debates in international relations continue to grapple with the tension between legality and moral legitimacy. Gareth Evans, for instance, acknowledges that actions violating international law may, in exceptional circumstances, claim moral legitimacy.¹ Yet such claims remain fragile: assessments of intention, proportionality, and outcomes are often deeply uncertain, particularly when undertaken by powerful states. This uncertainty points to a deeper limitation: the absence of a robust account of the moral formation of the actor.

This paper advances a different claim: war is not morally legitimate merely because it satisfies external criteria; it becomes truly legitimate only when undertaken by an agent inwardly aligned with *dharma*. Such an agent acts to restore order without egoistic attachment, ensuring that the use of force remains an expression of duty rather than an instrument of self-interest. Contemporary frameworks recognise the gap between legality and legitimacy; the *dhārmic* tradition explains why that gap exists, and how it may be resolved.

2. Just War Theory and Responsibility to Protect

Just War Theory articulates conditions under which war may be considered morally permissible: just cause, legitimate authority, right intention, proportionality, and last resort.² Similarly, the Responsibility to Protect reframes sovereignty as conditional upon the protection of populations, justifying intervention when states fail in this duty.³

These frameworks represent important ethical advances. They seek to restrain arbitrary violence and provide a normative structure for evaluating the use of

¹ Gareth Evans, *Good International Citizenship: The Case for Decency* (New Haven: Yale University Press, 1990).

² Michael Walzer, *Just and Unjust Wars: A Moral Argument with Historical Illustrations* (New York: Basic Books, 1977).

³ International Commission on Intervention and State Sovereignty, *The Responsibility to Protect* (Ottawa: International Development Research Centre, 2001).

force. However, they share a common limitation: they locate moral legitimacy primarily in externally verifiable conditions.

Even the criterion of ‘right intention’ is typically assessed through declared aims rather than ethical transformation. In contemporary frameworks, intention is evaluated in terms of stated objectives; in the *Bhagavad Gītā*, it is constituted through the transformation of the self. As a result, modern frameworks risk permitting actions that are formally justified but ethically hollow.

Thus, while necessary, such external criteria remain insufficient unless grounded in the moral condition of the agent who acts.

3. Legality, Legitimacy, and the Problem of Moral Judgment

A persistent dilemma in international ethics lies in the divergence between legality and legitimacy. While legality provides a formal framework, moral legitimacy often depends on judgments that are inherently difficult to verify. Claims of humanitarian intent may conceal strategic interests; proportionality is frequently assessed retrospectively; and outcomes remain uncertain at the moment of action.

As Gareth Evans’ recent analysis illustrates, even when frameworks attempt to evaluate moral legitimacy, they remain dependent on uncertain judgments regarding motivation and outcome.⁴ Leaders may invoke humanitarian justification while being guided by strategic or personal considerations, and the long-term consequences of intervention remain fundamentally unpredictable.

⁴ “When Is an Illegal War Morally Defensible?” *Project Syndicate*, March 4, 2026.

Even in more refined liberal theories such as those of John Rawls, moral legitimacy is grounded in publicly justifiable principles governing the basic structure of society and the conduct of peoples⁵. Yet such frameworks, while normatively rigorous, continue to locate legitimacy in external criteria rather than in the ethical formation of the agent.

The NATO intervention in Kosovo is often cited as a case of ‘illegal but legitimate’ action. Yet even here, legitimacy rests on retrospective consensus rather than universally agreed principles.⁶ In other cases, such as the 2003 Iraq War, claims to moral legitimacy falter under scrutiny due to questionable motivations and the absence of a credible end-state.

This reveals a structural limitation: contemporary frameworks suffer from epistemic uncertainty; they cannot reliably know intention, nor predict outcomes. As a result, they lack a stable foundation for adjudicating moral legitimacy.

A further distinction must be drawn between justification and rationalisation. Justification seeks to ground action in ethically defensible principles, whereas rationalisation retrospectively aligns action with moral language. Contemporary frameworks remain vulnerable to such slippage, particularly when intention cannot be independently verified.

It is precisely this limitation that the *Mahābhārata* addresses, not through abstract criteria alone, but through the ethical formation of the agent.

⁵ John Rawls, *The Law of Peoples*, with “*The Idea of Public Reason Revisited*” (Cambridge, MA: Harvard University Press, 1999).

⁶ Independent International Commission on Kosovo, *The Kosovo Report* (Oxford: Oxford University Press, 2000).

4. The Mahābhārata and the Ethics of Restraint

The *Mahābhārata* does not begin with war; it resists it.

Kṛṣṇa's repeated diplomatic missions to the Kaurava court demonstrate a sustained effort to avoid conflict⁷. Yudhiṣṭhira, despite grievous injustice, seeks compromise, even to the extent of accepting minimal concessions. These are not signs of weakness but of ethical discipline.

War, in this narrative, is not the first recourse but the final inevitability after all avenues of peace have been exhausted. This aligns with the 'last resort' principle of Just War Theory but goes further by embedding restraint within the character of the agents themselves.

The question is not merely whether war is justified, but whether those who wage it have become fit instruments of *dhārmic* action.

A *dhārmic* conception of war does not foreclose the possibility of reconciliation. Even after the commencement of conflict, space remains for the restoration of order through surrender, repentance, or negotiated peace. The persistence of such openness underscores that force, within this framework, is not absolute but conditional upon the continuing possibility of *dhārmic* resolution.

5. Arjuna's Moral Crisis

Arjuna's crisis on the battlefield is often interpreted either as moral hesitation or as emotional weakness. Both readings are incomplete. His grief (*śoka*) is not ethically irrelevant; rather, it reflects a refined moral sensibility⁸. His reluctance to kill kin, teachers, and elders expresses a recognition of the human cost of war and cannot be dismissed as mere confusion.

⁷ *Mahābhārata*, *Udyoga Parva*

⁸ *Bhagavad Gita* 1.28–30.

In this respect, Arjuna's response aligns with a philosophical view that argues that emotions are not opposed to reason but constitute forms of evaluative judgment.⁹ Emotions such as grief and compassion reveal what the agent takes to be of value. Arjuna's sorrow is therefore not a failure of ethics, but an expression of moral perception.

Yet this perception remains incomplete. Arjuna's grief is selectively focused: he recognises the immediate violence of war but does not fully reckon with the injustice that has made war necessary. The disrobing of Draupadī, the sustained humiliation of the Pāṇḍavas, and the broader consolidation of *adharma* under Duryodhana's rule recede from view. His emotional response, while genuine, lacks moral totality. He must remember not only those he must fight, but those who have already suffered injustice: Draupadī's humiliation, the long exile, and the silence of elders in the face of *adharma*.

At this juncture, the problem is not emotion per se, but its insufficiency as a guide to action when unintegrated with *dhārmic* discernment. Emotion must undergo transformation.

Kṛṣṇa's intervention does not suppress Arjuna's grief; it reorders it. Through instruction, Arjuna is led from grief (*śoka*) through understanding toward disciplined action. This movement may be understood as a form of ethical sublimation: emotion is neither indulged nor negated, but elevated into clarity of purpose.

The *Bhagavad Gītā* thus does not reject emotion, it integrates it within a higher framework of *dharma*. Arjuna is called to act not because his grief is invalid, but

⁹ Martha C. Nussbaum, *Upheavals of Thought: The Intelligence of Emotions* (Cambridge: Cambridge University Press, 2001).

because it is incomplete. True moral clarity arises when emotional insight is united with *dhārmic* responsibility.

In this sense, the crisis of Arjuna is not resolved by abandoning emotion, but by transforming it. Grief becomes the ground from which duty is realised.

6. Kṛṣṇa's Teaching and Dhārmic Action

Kṛṣṇa's response transforms Arjuna's crisis.

The *Bhagavad Gītā* introduces a conception of action rooted in *dharma*:

- One must act according to one's *svadharma*¹⁰
- One must relinquish attachment to outcomes (*niṣkāma karma*)¹¹
- One must act without egoistic identification

This conception of action is inseparable from a corresponding formation of character. The *kṣatriya*, as envisioned in the *dhārmic* tradition, is not merely a bearer of arms but a disciplined moral agent.

Such an agent is characterised by self-mastery, fearlessness, and detachment from personal gain. The purpose of force is not domination but the protection of order, of the vulnerable, and of *dharma* itself. Classical sources such as the *Manusmṛti* and *Vidura Nīti* emphasise restraint, truthfulness, and equanimity as defining traits of the *kṣatriya*, underscoring that the capacity to wield power legitimately depends upon prior ethical discipline.

In this sense, the *Gītā* does not merely justify action; it transforms the actor. The legitimacy of war thus derives not only from the justice of its cause, but from the ethical formation of the one who undertakes it.

Kartavyam iti karma, action is to be performed because it is to be done.

¹⁰ *Bhagavad Gita* 3.35.

¹¹ *Ibid.* 2.47–48.

Detachment from outcomes does not imply indifference to outcomes. Rather, it denotes freedom from egoistic attachment, while remaining fully committed to the realisation of just and necessary ends. In this sense, detachment enables clarity of judgment: it allows the agent to act without distortion arising from fear, desire, or personal attachment.

Detachment is thus not withdrawal from action, but the discipline that makes right action possible.

The question is not only whether a war is just, but whether the warrior is just.

Legitimacy, therefore, is grounded not in external justification alone but in ethical transformation. Classical commentators such as Ādi Śāṅkarācārya emphasise that action performed without attachment purifies the agent, while Bal Gangadhar Tilak interprets the *Gītā* as a call to disciplined action rooted in duty rather than renunciation.¹²

7. Rāma and Vāli: Dharma Beyond Procedural Form

The episode of Rāma and Vāli is often treated as ethically problematic due to the manner in which Vāli is slain, from concealment rather than through direct combat. However, such readings can obscure the *dhārmic* framework within which Rāma acts.

In the *Rāmāyaṇa*, Rāma's action reflects a position of clarity grounded in *kṣatriya dharma*. As an upholder of order, he assumes responsibility for addressing *adharma* wherever it manifests. Vāli's conduct, particularly his violation of established relational and moral norms, constitutes not merely a personal failing but a disruption of *dhārmic* order.

¹² Bal Gangadhar Tilak, *Śrīmad Bhagavad Gītā Rahasya* (1915).

Rāma's justification of his method is significant. He does not deny the unconventional nature of the act but situates it within a broader conception of kingship, where the restoration of order may not always conform to uniform procedural expectations.

The episode illustrates that *dhārmic* action is guided by responsibility to restore order rather than rigid adherence to form. Rāma's clarity lies in his alignment with purpose, not in conformity to expectation.

The episode reinforces a central insight of this paper: moral legitimacy arises from the alignment of the agent with *dharma*, even when the form of action departs from conventional norms.

Dharmo rakṣati rakṣitaḥ, *dharma* protects those who protect it.

8. Toward a Dhārmic Theory of Moral Legitimacy

A three-layered conception of legitimacy emerges:

- **External Legitimacy** – just cause, proportionality
- **Procedural Legitimacy** – legal authorisation
- **Ethical (Dhārmic) Legitimacy** – inner alignment of the agent

Contemporary frameworks operate primarily at the first two levels and therefore remain vulnerable to epistemic uncertainty. The *dhārmic* framework, by contrast, introduces an ontological grounding: legitimacy arises from the ethical state of the actor. Legitimacy, in this view, is not merely judged, it is embodied.

Such alignment entails:

- Freedom from ego
- Commitment to duty

- Detachment from outcomes
- Use of proportionate force in the restoration of *dhārmic* order

A deeper tension emerges at the intersection of *dhārmic* ethics and modern political thought. The *Bhagavad Gītā* enjoins detachment from attachment to outcomes, while political ethics demands the realisation of just and stable outcomes. This tension is not merely psychological but structural: how can one remain detached and yet ensure that justice is achieved?

The resolution lies in understanding detachment not as disengagement from outcomes, but as the condition for right judgment. Freedom from egoistic fixation enables the agent to discern more clearly, act more decisively, and pursue just ends without distortion. In this sense, detachment does not weaken responsibility for outcomes; it strengthens the capacity to realise them.

Thus, *dhārmic* ethics does not reject outcome-oriented reasoning but grounds it in a prior transformation of the agent. This constitutes a Dhārmic Theory of Moral Legitimacy, one that completes, rather than displaces, modern frameworks by grounding them in the ethical transformation of the agent from which legitimate action must arise.

9. Dharma as the Moral Ground of Legitimacy

War cannot be rendered moral through external criteria alone. While modern frameworks provide necessary conditions, they do not reach its foundation.

The *Mahābhārata* and the *Bhagavad Gītā* offer a deeper insight: legitimacy arises when action is undertaken by an agent aligned with *dharma*, that which alone sustains order.

Without such alignment, even a formally justified war degenerates into *adharma*.
